

Comments on the Massachusetts Child Support Guidelines and Guidelines Worksheet

To: Hon. Heidi E. Brieger, Chief Justice of the Trial Court
Massachusetts Trial Court, One Pemberton Square, Boston, MA 02108

cc: childsupport@jud.state.ma.us

Re: Suggested amendments to the 2025 Child Support Guidelines and Guidelines Worksheet

From: An independent Massachusetts child support payor (public copy -- see disclosure below)

Date: 14 September 2026

What I am asking for

1. **§ IV.C and Worksheet Line 7e** — the substantial-hardship threshold is measured against pre-tax income while the obligation is paid from after-tax income, so it engages later than its own text implies.
2. **§ II.E.1 and Worksheet Line 6b** — child care is allocated on each parent's share of income measured before the base order has re-weighted their resources. One calculation uses two income measures. A redline follows, and it changes amounts.
3. **§ II.E.4** — "reasonable evidence" of a child care cost is owed only on request and may be the claiming parent's own testimony, and "after any discounts or subsidies" is defined nowhere and recorded nowhere on the Worksheet.
4. **§ IV.B.13** — the same units problem as item 1, in the deviation factor written to compare the two households' standards of living.
5. **Worksheet Lines 5b and 6e** — the credit for equal parenting is the payor's own Line 6e, and Line 6e reduces it by reference to the other parent's income. The limitation operates in a payor's favour under Box 2 and against him under Box 1. Two redlines follow, and both change amounts.
6. Two recommendations already before the Task Force, on mandatory financial disclosure and on deviation data.

None of these changes Table A or anything committed to the Legislature. Three of them, the redline in Section 2 and the two in Section 5, would change the presumptive amount at this family's incomes, with the figures given where they appear. The rest change no amount.

Scope

These comments are about the internal consistency of the Guidelines' own mechanics. Each one asks that a provision measure what it says it measures. Apart from the Section 2 and Section 5 redlines just noted, nothing here asks for a different amount of support.

I am writing outside a review cycle and to the Chief Justice's office rather than to a sitting task force, for the reasons in § 7. I have followed the format the Trial Court asks of comments on the Guidelines anyway: the section to be changed, the suggested language, and the reasons.

1. Section IV.C measures hardship in units the obligation is not paid in

Section referenced: Section IV.C; Guidelines Worksheet Lines 3a and 7e.

Current language:

"Whenever application of the guidelines requires a payor to pay a recipient 40% or more of the payor's available income in Line 3a of the guidelines worksheet for a current child support order, there shall be a rebuttable presumption of a substantial hardship, justifying a deviation from the guidelines."

Suggested language:

"Whenever application of the guidelines requires a payor to pay a recipient 40% or more of the payor's available income in Line 3a of the guidelines worksheet, ~~for a current child support order~~ **as adjusted to an after-tax basis, for a current child support order**, there shall be a rebuttable presumption of a substantial hardship, justifying a deviation from the guidelines. **The Worksheet shall compute this comparison at Line 7e using the payor's available income net of federal and state income tax and FICA.**"

Reasons.

Section IV.C is a diagnostic. It sets no amount; it identifies when an amount has become a hardship. Whether the Guidelines should be calibrated on gross income is a separate question, and I take no position on it here.

The 2025 Commentary says the 40% language "is consistent with the calculation in the guidelines worksheet." It is. Line 7e computes exactly the quantity that sentence names. My question is about the quantity, not about whether the form follows the sentence.

A support order is paid out of after-tax income. A threshold stated in pre-tax terms therefore does not measure the thing it names, and the gap between the two grows with the payor's effective tax rate. The provision engages latest for exactly the payors with the largest gap between gross and net. That is the reverse of the ordering its purpose implies.

The Task Force has been asked this question directly twice. The 2008 Report of the Child Support Guidelines Task Force recorded: "There was little support on the Task Force for basing orders on net income, although this was suggested and discussed. All formulas the Task Force considered were based on gross income." The 2012 Report named where the comment came from and why it was declined: "a recurrent comment from noncustodial parents was the suggestion to base the Guidelines on net income instead of gross. The Task Force declines to recommend this change. The Task Force reasons that the current practice of utilizing the combined gross income of the parties remains the simplest option."

That is not the only relevant part of the record. In three reviews since, the Commonwealth's own economic consultants have measured the amounts the Guidelines produce against outside estimates of what children cost. The 2017 Economic Review found that "the guidelines amounts in Massachusetts for one child have been higher than all of the benchmarks in at least the last two quadrennial reviews in 2008-2009 and 2012-2013," and that "over the middle- and high-income ranges, the revised guidelines amounts are higher than the USDA national estimates by 37 and 63 percent, respectively." The 2021 Economic Review reported the same comparison for one child, "over the middle- and high-income ranges ... higher than the USDA national estimates by 34% and 58%, respectively." On Table B it reported the opposite. The adjustment factors for additional children were "lower than all of the benchmark estimates," and that review recommended raising them: "it would be economically appropriate to increase the adjustment factors in Table B to be more consistent with the benchmarks." The Task Force agreed, and the revised factors are 1.40, 1.68, 1.85 and 1.94. The 2025 Economic Review found the amounts "higher than available child cost benchmarks before considering child care and health care costs, but ... more similar to child support amounts in benchmark states when accounting for those costs, especially high-cost states,"

attributed that to "the clear empirical evidence of a higher overall cost of living in Massachusetts," and concluded that such costs "are reflected in economically appropriate, relatively high, child support amounts." It records that gross versus net was discussed "again in this review, as prior task forces have done," with no change recommended "at this time," and that the Task Force discussed "the Child Tax Credit and the Earned Income Tax Credit that can materially affect a household's available income, especially in lower-income families." It expects the question back: "We expect this issue will once again be considered as part of the next guidelines review."

I set the record out at that length because it does not all run one way. The consultants reported amounts above the benchmarks for one child and below them for additional children, they raised the additional-child factors on that finding, and in 2025 they concluded the levels are economically appropriate once Massachusetts's own costs are counted. The comment about net income came from noncustodial parents in 2012, and it comes from one again here.

I am not asking the Task Force to reopen that question. I am asking only that the hardship diagnostic be stated in the units in which hardship is felt. Table A, the tranches, and every support amount stay exactly as they are.

A worked example, and a disclosure. The example used throughout these comments reflects real Worksheet parameters, with the parties shown as Parent A and Parent B: a payor at \$201,000 a year, a recipient at \$570 a week, three children, Box 1. These are real figures under the 2025 Guidelines, not parameters chosen to produce a result. I pay child support in Massachusetts myself, so I have a stake in how this review comes out, and a reader should reasonably wonder whether an interested party shaded a number in his own favor -- every figure here is published with the code that produced it, so it can be checked rather than taken on trust. These comments propose only changes of general application, and I seek nothing case-specific from them. One of them, in Section 5, would lower the order in this example by up to 30.8% if it were adopted, and I would rather put that in front of you here than have you find it there. I do not think a proposal should be discounted because the person making it has a stake in the answer, but you are entitled to know that, and to weigh it.

Two parents, three children, two under 13 and one 13 to 17, Box 1 (shared). Parent B earns \$201,000 per year and pays a \$43 weekly health premium. Parent A reports \$570 weekly and pays \$33. Combined available income is well inside the presumptive range; there is no imputed income, no dependency benefit, and no child aged 18 or over, so the example runs the ordinary path through the Worksheet and Table C does not engage.

Weekly child care claimed	Presumptive order	Line 7e reports	Order as % of payor's after-tax income	Hardship box
\$0	\$1,013	26.5%	37.7%	—
\$100	\$1,100	28.8%	40.9%	—
\$300	\$1,276	33.4%	47.4%	—
\$589	\$1,529	40.0%	56.9%	checked
\$1,290 (the § II.E.1 maximum)	\$2,144	56.1%	79.7%	checked

Line 7e first reaches 40% when claimed child care reaches about \$589 per week. That is roughly \$196 per child, and about 46% of the \$430-per-child benchmark the Guidelines themselves allow. At the moment the presumption becomes available, the payor is already sending about 56.9% of after-tax income to the order. In this example the gap between what Line 7e reports and what the payor is actually paying is about 17 percentage points, and it widens as the payor's effective tax rate rises.

So the trigger is reachable. The Guidelines are not inoperative. But it fires well after its own text says it should, and last for the payors it was written for.

Supporting analysis is attached as Attachment B.

2. The Worksheet allocates child care on an income measure it has already adjusted away from

Section referenced: Section II.E.1; Worksheet Lines 2g, 3c, 6a and 6b.

Section II.E.1 allocates child care "in proportion to their share of combined available income." Worksheet Line 6b implements that as *the other parent's Line 3c* $\times$ *this parent's Line 6a*. Line 3c is a pre-transfer measure. It is each parent's share of combined available income before the base support calculation at Lines 3e–5c has re-weighted the parties' resources. The second expense is therefore allocated on a distribution that no longer exists once the first transfer is made.

In the worked example, Parent A's Line 3c is 12.32% and Parent B's is 87.68%.

Child care claimed by Parent A	\$15,600/yr (\$300/wk)
Increase in the presumptive order	\$13,678/yr (\$263/wk)
Proportion of the claimed expense funded by Parent B through the order	88%

Parent B funds 88% of the expense because Parent B held 88% of pre-transfer available income, a share Parent B no longer holds once the base order at Line 5c has been applied.

The allocation is also blind to the parenting arrangement. Lines 6a and 6b contain no parenting-time term, and Line 3c is a pure income share, so the box checked at Line 1b makes no difference to how child care is allocated. In the worked example the allocation to Parent B is \$263.05 per week under Box 1 and \$263.05 under Box 2.

The reverse direction is not symmetrical, and I do not think it was meant to be. Where the payor pays the provider directly, the payor's nominal entitlement is the other parent's 12.32% share. Under Box 2 it arrives in full. The order falls by \$36.95 per week. Under Box 1 the order falls by \$5.19.

The cause is Line 6e. Under Box 1, Line 6d for the payor's column is 4.97%, below the 10% threshold, so 6e is limited to " $((6d + 10\%) \times \text{the other parent's } 3a)$ ", and the other parent's Line 3a is \$537. The credit passes through at the ratio of the two available incomes, about 14%. Under Box 2, Line 6d reads "N/A", 6e equals 6c, and no limit applies.

A payor who shares parenting equally therefore recovers less for child care paid directly than a payor whose children live mainly elsewhere, roughly 1.7 cents on the dollar against 12.3. That is the opposite of the ordering the arrangement would suggest, and it comes from a low-income protection at Line 6e operating on a line it was not written for.

Where both parents pay child care, the two features compound. The scenario below assumes each parent separately incurs \$300 per week of work-related child care during their own parenting time, so combined spending is \$600 per week rather than \$300. I state that as an assumption, not a finding. The Guidelines collect no data on how child care spending behaves under shared parenting. If the combined figure is lower, the effect scales down in proportion; the mechanism does not change.

	Presumptive order	Payor retains	Recipient household holds	Payor's share
Neither parent pays child care	\$1,013/wk	\$87,172	\$77,395	53.0%
Recipient alone pays \$300/wk	\$1,276/wk	\$73,493	\$75,474	49.3%

	Presumptive order	Payor retains	Recipient household holds	Payor's share
Each parent pays \$300/wk	\$1,271/wk	\$58,163	\$75,204	43.6%

Combined child care across the two households is \$31,200 a year. Of that, \$29,008, or 93%, is borne by the payor, who also earns 87.15% of combined gross income. The payor's own \$15,600 of child care reduces the presumptive order by \$270 a year, because of the Line 6e limit described above. Line 7e reports 33.2%. The payor's order and own child care together consume 58.4% of after-tax income.

The caveat belongs here as much as anywhere. Per person the payor still leads in every row, \$58,163 supporting one against \$18,801 each for four in the scenario where both parents pay. The household comparison itself moves with the child care claimed: the payor holds more of the combined after-tax money when no child care is claimed and when only the recipient claims it, and holds less once he is also paying \$300 a week of his own. The point is not that the payor is worse off in every sense, but that the Worksheet allocates a cost incurred in two households as though it were incurred in one, and then declines to credit the payor's own share of it.

Suggested language (Commentary to Section II.E.1, added):

"The allocation of child care costs at Line 6b is made on each parent's share of combined available income and is not affected by the parenting schedule selected at Line 1b. Where a parent has paid child care directly and that parent's Line 6d is below 10%, the limitation at Line 6e may reduce the resulting credit well below the other parent's proportional share. The Court may consider whether that result is appropriate in the circumstances."

I am not suggesting that Line 3c is the wrong basis as a matter of policy. Allocating a shared expense by relative means is a coherent rule. What I am pointing out is that the Worksheet applies two different income measures inside one calculation. The base obligation re-weights the parties' resources, and the child care allocation is then computed as though it had not.

Section 1 does not ask the Task Force to reopen how Table A is calibrated, and this section does not either. Table A stays on gross income, exactly as it is. Child care is a different kind of line. It is not a schedule built once from national data; it is a specific dollar figure entered at Line 2g and then divided between two parties, and dividing an actual expense should use the resources the two parties actually have. Once the base order is paid, that measure is net of tax.

Suggested language (Section II.E.1):

"in proportion to their share of the income each parent retains after the base child support obligation and after federal and Massachusetts income tax and Social Security and Medicare withholding, computed for a single filer claiming no exemptions"

Suggested language (Worksheet, new Lines 6b-1a and 6b-1, and Line 6b):

"6b-1a. Adjusted net income. For each parent, Line 3a reduced by the federal and Massachusetts income tax and the Social Security and Medicare withholding that the schedules published for the calendar year impose on that income, computed for a single filer claiming no exemptions."

"6b-1. Adjusted net income share. For each parent, Line 6b-1a reduced (for the Payor) or increased (for the Recipient) by the weekly amount Line 7d would show if Lines 6a and 6b

were zero, using the Payor and Recipient designations Line 6f would give in that case; divided by the combined total of both parents' Line 6b-1a amounts."

"**6b. Other parent's Line 3e** **Other parent's Line 6b-1** $\times$ this parent's Line 6a."

At the worked example, Parent B's share of the \$300 a week falls from 87.7% to 53.0%, and the order with child care falls from \$1,276 to \$1,172 a week, \$5,415 a year. That figure does not move whether or not the child care itself is counted in the computation, because the two parties' combined after-tax resources are the same total either way.

This is not a new computation invented for this comment. The Task Force's own economic reviews convert the guidelines chart to net terms every cycle, to compare it against Dr. Betson's study, which is denominated in net income. The 2025 Economic Review: "we calculated the net income equivalents of gross weekly income amounts for Massachusetts, since the guidelines use gross income and Dr. Betson's study uses net income. We made this adjustment using state-specific income withholding tables for Massachusetts and standard withholding for Social Security and Medicare." The 2013 Task Force Report, the 2017 Economic Review and the 2021 Economic Review each perform the same conversion, in substantially the same words. Line 6b-1a asks for the conversion the Commonwealth's consultant already performs, applied to two lines of the Worksheet rather than to the chart.

It deliberately stops there. The federal Earned Income Tax Credit and Child Tax Credit and the Massachusetts credits are large at the recipient's income, and the Commonwealth's consultant has said so: those credits "can materially affect a household's available income, especially in lower-income families." They are left out of Line 6b-1a because they turn on which parent files as head of household and which parent claims which child, the Worksheet collects neither fact, and in a shared-parenting case the claim is frequently alternated year to year by the judgment itself. A Worksheet line cannot rest on an input the Worksheet does not have. The omission runs against the parent proposing it: counting the credits would put Parent B's share of the child care at 49.7%, three points below the 53.0% the line as drafted asks for. Leaving the credits out still costs the parent proposing this change, not the other side.

The Worksheet computes no net figure today, and Section 1 above asks for the first one, on the same basis: available income net of federal and state income tax and FICA. This section asks for that basis a second time, for both parents rather than one, and here it changes an amount. That is a larger request than Section 1's. Five reviews have taken up gross versus net, and none has changed it. Two are Task Force decisions in the Task Forces' own reports: the 2008 Report, and the 2012 Report, which declined on grounds of simplicity. The other three are statements in the economic reviews by the Commonwealth's consultants: the 2017 and 2021 Economic Reviews state the gross basis without giving a reason, and the 2025 Economic Review records that the Task Force discussed the question and decided not to recommend a change. None of the five states a finding that a gross basis measures the thing more accurately. I make the request knowing that record. Line 6b-1a is the narrowest form I can put it in: two lines, no new field on the form, no per-parent fact the Worksheet does not already collect. If it is still too much, the correction below reaches part of the same gap with no net computation at all.

Suggested language (Worksheet, fallback if a net computation is not adopted, new Line 6b-2 and Line 6b):

"**6b-2. Adjusted income share.** For each parent, Line 3a reduced (for the Payor) or increased (for the Recipient) by the weekly amount Line 7d would show if Lines 6a and 6b were zero, using the Payor and Recipient designations Line 6f would give in that case, divided by Line 3b."

~~"6b. Other parent's Line 3c~~ **Other parent's Line 6b-2** × this parent's Line 6a."

At the worked example, Parent B's share of the \$300 a week falls from 87.7% to 64.5%, and the order with child care falls from \$1,276 to \$1,206 a week, \$3,624 a year. This version needs no input the Worksheet does not already compute. It is the version to adopt if the Task Force will not add a tax computation to the form.

Suggested language (Commentary to Section II.E.1, added, as a further fallback):

"The proportional allocation at Line 6b is computed on each parent's share of combined available income at Line 3c, which is measured before the base support obligation is applied. A parent's share of child care under Line 6b will therefore exceed that parent's share of resources remaining after the base order."

The Commentary language is a disclosure, not a change to any amount. It costs nothing, and it lets a court and the parties see what the line is doing.

This section and § 3 belong together. The allocation rule decides how much of a claimed expense a payor funds; § II.E.4 decides how easily the expense can be claimed. At an 88% allocation, an unsupported entry on Line 2g is worth 88 cents on the dollar to the parent who makes it, and contesting it costs more than that in nearly every case where the question could arise.

3. "Reasonable evidence" is owed only on request, and "subsidies" is defined nowhere

Section referenced: Section II.E.4 and the Commentary to it; Worksheet Line 2g.

Current language:

"The parent claiming the child care cost is responsible for providing reasonable evidence of the out-of-pocket expense actually paid after any discounts or subsidies, upon request."

Commentary: "Reasonable evidence may include a parent's credible testimony."

Suggested language:

"The parent claiming the child care cost is responsible for providing reasonable evidence of the out-of-pocket expense actually paid after any discounts or subsidies, upon request at the time the cost is entered on Line 2g of the guidelines worksheet. Reasonable evidence ordinarily consists of documentation of the amount actually paid, such as a provider statement, invoice, receipt, or record of payment. Where documentation is unavailable, the Court may accept other reasonable evidence and shall note the basis on the record."

Reasons.

The Task Force added § II.E.4 this cycle, which says it recognises that claimed child care costs need substantiating. Two features of the provision as adopted limit what it can do. The obligation arises only "upon request," and the Commentary lets the standard be met by the claiming parent's own testimony.

The result is lopsided. Entering a child care figure on Line 2g costs nothing. Testing it means requesting evidence and then contesting credibility, the most expensive kind of factual dispute there is, over an amount that will usually be smaller than the cost of contesting it. A provision with that cost structure works the same way whether the claim is accurate or not.

The suggested language keeps the Court's discretion to accept non-documentary evidence where documentation genuinely does not exist, as it often will not for informal or family-provided care. It makes documentation the ordinary expectation instead of something a party has to ask for.

The same sentence has a second gap. Section II.E.4 already limits the claimable amount to what was "actually paid after any discounts or subsidies." Neither the Guidelines nor the Commentary says what a subsidy is, and the Worksheet has no line to record one. The phrase does no work.

The clearest case is an employer dependent care flexible spending arrangement. The 2026 limit is \$7,500, the first permanent increase since 1986, and those dollars are excluded from income before federal tax, Massachusetts tax and FICA. A parent contributing the full amount avoids roughly a third of it in tax. Those dollars were never taxed and were never out of pocket in any ordinary sense, and nothing on the Worksheet stops the gross figure from being entered at Line 2g. The same is true of a child care voucher, scholarship or subsidy from any governmental or private source.

Suggested language (Commentary to Section II.E.4, added):

"For purposes of this section, amounts 'actually paid after any discounts or subsidies' are net of employer-provided dependent care assistance and of amounts excluded from income through a dependent care flexible spending arrangement, and net of any child care subsidy, voucher or scholarship received from a governmental or private source. The parent claiming the cost should state whether any such amount was received."

Suggested Worksheet change: a new line after 2g, captioned **"2h. Employer dependent care assistance, dependent care FSA reimbursement, or child care subsidy received (weekly)."**, subtracted from Line 2g before the Line 6a benchmark is applied.

I am not asking that the federal Child and Dependent Care Credit be netted. It depends on a party's whole return, cannot be computed on the Worksheet, and would raise the tax question the Task Force has deliberately set aside. Dependent care assistance and subsidy amounts need no tax computation at all. The claiming parent knows them, and they appear on Form W-2, Box 10.

This applies symmetrically. A payor who pays child care directly and enters it at Line 2g is in precisely the same position. And it supports the recommendation at § 6.

4. Factor 13 compares standards of living in a currency neither household spends

Section referenced: Section IV.B.13; CJ-D 305 item 14.

Current language:

"application of the guidelines would result in a gross disparity in the standard of living between the two households such that one household is left with an unreasonably low percentage of the combined available income"

Suggested language:

"application of the guidelines would result in a gross disparity in the standard of living between the two households such that one household is left with an unreasonably low percentage of the combined available income, **measured on an after-tax basis**"

Reasons.

This is the units problem of § 1 in a second provision, and I will not repeat the argument. What differs is the subject. Factor 13 is expressly a standard-of-living comparison, and standard of living is a function of what each household has left after tax and after the order is paid, not of pre-tax income. A household-level comparison is already an accepted ground for deviation under the Guidelines; the suggestion changes only the measure, not the ground.

The figures below use the same basis as Section 1: federal income tax, Social Security and Medicare, and Massachusetts income tax, for a single filer taking the standard deduction, no credits. It is the method the Task Force's own consultant already uses to convert the guideline chart to net terms, applied here to the two households Factor 13 compares rather than to the chart.

In the worked example, Parent B's effective rate on \$201,000 is about +30.4%. Parent A's, on \$29,640, is about +16.6%. That is a 14-point spread in the share of gross income each household loses to tax before it can spend anything, and Factor 13, denominated in pre-tax combined available income, sees none of it.

The convention is deliberately narrow, and it is worth saying which way it cuts. A recipient parent of three at this income would in practice file as head of household and would likely claim refundable credits, none of which is modelled above. Both omissions understate her household's resources, and so understate the comparison this section is making. I use the narrower basis because the Worksheet collects neither filing status nor which parent claims which child, and a Worksheet line cannot rest on an input the Worksheet does not have.

	Payor retains	Recipient household holds	Payor's share of what the two households keep
No child care	\$87,172	\$77,395	53.0%
\$300/wk child care	\$73,493	\$75,474	49.3%

Per person the payor is ahead in both rows: \$87,172 supporting one person against \$19,349 each for four with no child care claimed, \$73,493 against \$18,868 each for four once \$300 a week is. A household comparison and a per-person comparison can point in different directions. Factor 13 asks for the household one in its own words, quoted above: the disparity it looks for is "between the two households."

With no child care claimed, the household comparison agrees with Factor 13's own measure: the payor is ahead either way. Once \$300 a week of child care is claimed, the after-tax household comparison reverses and the recipient's household comes out ahead, while Factor 13's own figure does not move at all. Line 3c, the combined-available-income share it relies on, is computed before child care enters the worksheet and before any tax is applied. A factor meant to catch a gross disparity in living standards cannot register a cost that its own inputs are computed before.

5. The Worksheet's credit for equal parenting time shrinks as the income gap widens, because it contains no parenting-time term

Section referenced: Guidelines Worksheet Lines 1b, 5b, 6d–6e and 7a–7b; Section II.D.

Before the mechanics, something about where they live. Section II.D.2 provides that information about the parenting arrangement "is entered directly into the guidelines worksheet," and that "the guidelines worksheet will calculate the presumptive child support order based on the information entered into the guidelines worksheet." The calculation belongs to the form. I searched the 2025 Guidelines, the Task Force's report and the Economic Review for the lines that perform it. "6d," "6e" and "income disparity" return nothing in any of the three. Of the two places the Economic Review uses "shaded," one concerns the Chart's low-income area and the other a table of court-division deviation rates. Neither concerns these lines. Neither does any form of "duplicate," so the cost question those lines implicitly answer, whether two households providing a residence for the same children cost more than one, was not examined in this cycle either.

I am not suggesting anything was concealed. The Worksheet is a public form and was an appendix to the Task Force's own report. I am not disagreeing with a judgment the Task Force made; I am describing a computation that fixes the presumptive order in every shared-parenting case in the Commonwealth and that no published document sets out or explains. That seems to me a better reason to look at it again than any argument I could make about whether the result is fair.

The Worksheet takes parenting time as a categorical input at Line 1b: Box 1 (shared approximately equally), Box 2 (children primarily with one parent, approximately two-thirds of the time), or Box 3 (split). No quantity of parenting time enters the arithmetic at any later line. The boxes work by changing the number of children entered in each parent's column at Lines 1d–1f. Under Box 2 the payor's column carries zero children, so the Table B factor for that column is 0.00 and Line 6g reduces to the difference between the two parents' income shares.

The reduction a payor receives for having the children half the time rather than a third is therefore a function of the parties' relative incomes and of nothing else. The identity derived below shows why that holds generally and not only at this example. Holding the children, their ages and the parenting arrangement constant, and varying only the income split:

Payor's share of combined available income (Line 3c)	Box 2 order	Box 1 order	Reduction for equal shared parenting
56.3%	\$934	\$209	77.6%
66.0%	\$985	\$478	51.5%
76.6%	\$1,040	\$826	20.5%
87.7%	\$1,088	\$1,013	6.9%
95.8%	\$1,123	\$1,108	1.3%

(Three children under 18; health premiums as in the worked example; only the lower earner's income varies.)

Two parents in identical arrangements, each caring for three children half of the time, receive recognition for it ranging from 77.6% to 1.3% depending on how far apart their incomes are. What is the 6.9% compensating for? The Guidelines do not say, because no parenting-time or cost quantity enters the calculation at any line.

The arithmetic behind that is short enough to set out in full. Under Box 1 both columns carry every child, so Line 4c is the same figure in each column. Each column's Line 5b is that figure multiplied by the *other* parent's income share. Under Box 2 the payor's column carries no children, so his Line 5b is nothing and the order is Line 4c multiplied by his own income share. Subtract one from the other and an identity falls out: the credit for equal parenting is the payor's own Line 6e, exactly, and nothing besides.

Two separate things reduce that quantity. The first is that his column entitlement is Line 4c multiplied by the *recipient's* income share, so the less the other parent earns, the less he is credited for having the children half the time. At the worked example that is \$152.84 against a \$1,240.73 obligation. The second is Line 6e itself. His entitlement is small relative to his income, so Line 6d

comes to 4%, below the 10% threshold, and Line 6e then limits him to roughly 10% of the *other parent's* income. That removes a further \$77.67 and leaves \$75.17.

Line 6e is the income-disparity limitation, and the same device appears at Lines 7a and 7b. There, under Box 2, it caps what a payor can be ordered to pay by reference to the share of her own income the other parent devotes to the children, and it protects him. Under Box 1 the Worksheet applies it to both columns symmetrically, and on the payor's column the quantity being limited is not an obligation but a credit. The sentence that shields him in one box takes from him in the other. This is the narrowest defect here: one line, no policy judgment, no change to any schedule.

Set the limitation aside and Box 1 turns out to be a formula that is not unusual at all. Of the fifty-one jurisdictions surveyed for Attachment D, twenty-eight apply some formula-based reduction for shared parenting, and the common shape is a cross-credit. Each parent's obligation to the other is the basic obligation, raised by a factor for the costs two households duplicate, allocated by income share, then multiplied by the share of time the other parent has the children; the two are netted. I have not classified all twenty-eight by mechanism, and I do not claim they all use this one. Box 1 without the Line 6e limitation is that formula, at equal time, with the duplication factor set to 2.0. That is simply what it means for both columns to carry every child at Table B: two households, each charged in full for three children.

A larger duplication factor produces a larger transfer, so 2.0 is not a generous assumption but the most severe one available. The one published treatment I have found gives 1.5 as the usual multiplier and does not say what the few exceptions use. Indiana's Commentary, quoted above, puts a number on the question, and it is the usual one. Oldham and Venohr report that twenty-three states use the cross-credit formula, most of them raising the basic obligation by 50% "to account for some child-rearing expenses being duplicated when both parents have substantial access," which is a factor of 1.5. J. Thomas Oldham and Jane Venohr, *The Relationship Between Child Support and Parenting Time*, 54 Fam. L.Q. 141, 152–53 (2020).

That gives a way to say what equal parenting is currently worth in the units the question is actually about. The cross-credit can be solved for the share of overnights that would produce the order Massachusetts in fact produces. Every parent in the table below has the children half of the time.

Payor's share of combined available income (Line 3c)	Box 1 order	Priced at a factor of 1.5	Priced at a factor of 2.0
60.8%	\$340	46.4%	50.0%
68.4%	\$536	43.9%	50.0%
76.6%	\$826	36.0%	46.2%
81.5%	\$920	34.4%	46.2%
85.1%	\$977	33.6%	46.5%
87.7%	\$1,013	33.3%	46.9%

Against Indiana's factor, a parent at this family's incomes who has the children half of the time is credited as though he had them a third of the time. To be exact about what that is and is not: it is the last row of the table, the worked example's own income split, and not the typical case, since across the rest of the range the figure runs between 33.6% and 46.4%. What holds generally is the direction and the slope, not the coincidence with one third. Against the 2.0 the Worksheet's own arithmetic already implies, the answer is 46.9%, and the entire shortfall from half is the Line 6e limitation. The two benchmarks disagree about the size and agree about the direction. Below \$391 of available income Line 5c substitutes a fixed amount from the shaded area of the Chart, at which point the order is not a cross-credit at all and cannot honestly be expressed as one, so those incomes are left out of the table.

So on this worked example, checking the box for equal parenting moves the order very little, because it produces close to what the primary-custody box already produces.

On the cost side I assert no figure of my own. Massachusetts has not estimated the additional cost of housing and transporting children for a greater share of the time. Two things a reader can check. Housing is consistently the largest single component of child-rearing cost in the federal estimates, 26% to 33% of the total in the United States Department of Agriculture's *Expenditures on Children by Families*, and it is the component least reducible by a time split, because a residence for the children must exist in both households regardless of the overnight count. And at least one other state's guidelines commission has quantified this directly. Indiana's Child Support Guideline 6 Commentary provides that where parents share parenting equally, 50% of the Basic Child Support Obligation is assumed to be "duplicated," 35.4% "transferred," and the remaining 14.1% "controlled" by one parent.

I ran this same family through all fifty states and the District of Columbia. For each jurisdiction, one analysis read the state's own statute, court rule, schedule and worksheet and recorded its structure. Two further analyses then computed the order independently from that record without seeing each other's work. Disagreements were adjudicated against the primary source, and a final analysis tried to find an error in the recorded structure. Each of those analyses was performed by an AI language model working from the primary documents under written instructions. Attachment D describes the method, names every source, and lists every document downloaded. Massachusetts went through the same process blind, as a control, and reproduced the worksheet figures above to within a dollar.

I report only the jurisdictions whose figures survived every stage. Thirty did on the first pass. I then reworked the twenty-one that had not, in two further passes, the second of them from the states' own documents downloaded for the purpose, and each reworked figure went through the same independent recomputation and adversarial check. Twenty more survived, and I report fifty in all. Three of the fifty, Kansas, New York and Oklahoma, are the mandatory amounts at those states' income caps, with everything above the cap left to the judge, and they are labelled as such wherever they appear. The one I do not report is Georgia, whose newly enacted parenting-time formula, read literally, produces a lower order at one-third time than at equal time. Five analyses agree that is what the text says, and the worked example in the Georgia Commission's own calculator guide reproduces the same formula to the cent. I would rather not rank a result the statute's own explanation of the adjustment seems not to intend, even though the state's calculator produces it. It falls well below Massachusetts on both scenarios either way.

Among the fifty, on equal shared parenting, Massachusetts produces the highest presumptive order, \$4,388 per month. New York's cap-bound \$4,068 is next. Among states whose schedules reach this income, the next highest is New Hampshire at \$3,839, which Massachusetts exceeds by about 14%. On the primary-custody scenario, one jurisdiction is higher: Hawaii, at \$5,821 under a Melson formula, a design shared only with Delaware and Montana among the fifty, and Hawaii sits well below Massachusetts on equal parenting. Massachusetts's \$4,714 is about 5% above the next, Wisconsin at \$4,492. Two conventions differ between the passes, on the parents' health premiums and on the tax treatment of net-income states. Attachment D measures both, and the Wisconsin margin, the closest in the ranking, should be read with that in mind.

Three qualifications, and I would rather state them than leave them to the reader. This is one fact pattern at one income level; it does not control for cost of living, and the Task Force's own consultant has justified higher Massachusetts amounts on that ground. Most of the fifty figures were produced by analysts who rated their own confidence as moderate, usually because a schedule had to be interpolated, and while each was checked by an adversarial pass, none was checked to the standard of the Massachusetts control. And these are presumptive guideline amounts, not outcomes. Several jurisdictions reach equal-parenting results through discretionary deviation rather than formula, and those outcomes may be materially lower.

One comparison does not depend on any ranking. Massachusetts's worksheet does not count overnights. It selects among three categorical boxes, and approximately one-third parenting time falls inside the box the Guidelines treat as ordinary primary custody with no adjustment. Twenty-

eight of the fifty-one jurisdictions surveyed apply some formula-based reduction at that time split; Massachusetts is one of the twenty-three that do not. I draw no conclusion about the size of that effect. Among the five rows that met the strictest verification tier, the increase from equal time to one-third time runs from nothing in New Jersey to about 75% in Delaware, with Massachusetts, the one row without a credit, second lowest at about 7%. The presence of a credit does not order those five, and the categorical design itself is the minority approach.

The 2025 Task Force declined to add parenting-time boxes to the Worksheet and created the Section II.D.4 deviation pathway instead. I am not asking it to revisit that. The first change below alters the wording of an existing line and adds nothing. The second adds one computed sub-line, which I recognise is a change to the form, though it asks nothing of either party that the Worksheet does not already collect. The third would require a parenting-time field, and I raise it without pressing it.

Before turning to language, one qualification belongs here rather than left implicit. Any Worksheet line that changes with parenting time creates an incentive to litigate custody for the price rather than the child, in either direction, and the literature on that channel is not reassuring. A systematic review of 39 studies since 2010 finds children in shared physical custody do consistently better than children in sole custody, with the caution that no study in the set has pre-separation data, so it cannot rule out that better-resourced, lower-conflict families are the ones who arrive at shared custody in the first place (Vowels and others, PLoS One, 2023). And the one study that isolates custody decisions driven specifically by a financial incentive, rather than the child's interest, finds those children have measurably lower educational attainment and worse health (Fernandez-Kranz, Roff and Sun, Journal of Economic Behavior and Organization, 2021). That is why I have not asked the Task Force to price parenting time more richly than it does now, only to correct the line that already prices it. The same caution applies throughout: nothing here argues that a larger credit would make children better off.

Section referenced: Guidelines Worksheet Lines 6d–6e and 7a–7b.

Suggested language (Worksheet Line 6e, replacing the present instruction as it applies where Box 1 is checked):

"Where Box 1 is checked, enter the amount from Line 6c. The limitation described at Line 6e shall be applied once, at Lines 7a and 7b, to the netted amount at Line 6g, in the same manner as where Box 2 is checked."

Box 3 follows the same path on the form, so the same reversal must occur there. I have not modelled it, Section 5.1 below finds a defect under Box 3 that runs in the opposite direction, and I would rather raise the question than extend a change I have not checked.

Reasons. Line 6e limits a parent's figure by reference to the other parent's income. The Guidelines do not state the line's purpose, so the reading below is an inference from what the line does, not from any Commentary. Where the figure limited is an obligation, as it is under Box 2, the limitation holds down what a parent can be ordered to pay relative to what the other parent devotes of her own income, which operates in the payor's favour. Where it is a credit, as it is for the payor under Box 1, the same limitation reduces what he is allowed for having the children half the time, and it reduces it most where the income gap is widest. Applying it once to the netted transfer preserves the protection and removes the reversal. It requires no new information from either party.

Section referenced: Guidelines Worksheet Line 5b; Section II.D.

Suggested language (Worksheet, new Line 5b-1):

"5b-1. Where Box 1 is checked, multiply Line 5b by 0.75 and enter the result. Where Box 2 or Box 3 is checked, enter the amount from Line 5b."

Reasons. Box 1 charges each household in full for every child, which is a cross-credit with a duplication factor of 2.0. The factor of 1.5 that Indiana's commission derived, halved by the equal time Box 1 already describes, is the 0.75 above. The Task Force need not adopt Indiana's figure. What I am asking is that the factor be a number the Guidelines have chosen and can explain, rather than one that falls out of an entry convention at Lines 1d to 1f. If the Task Force concludes 2.0 is right, saying so in the Commentary would answer this section.

Not proposed, recorded for completeness. Replacing the 0.75 with 1.5 multiplied by the other parent's share of overnights would give the same result at equal time and would also dispose of the region between one third and one half that Section II.D.4 now sends to a judge. It needs a parenting-time field on the Worksheet, which the 2025 Task Force declined to add, so it is not one of the suggestions in these comments.

These change amounts, and I would rather say so than present them as neutral. At the worked example the first reduces the weekly order from \$1,013 to \$935, a change of 7.7%, and the second to \$701, a change of 30.8%. Line 7e falls from 26.5% to 24.5% and then to 18.3%. Against a Box 2 order of \$1,088, the credit for equal parenting goes from 6.9% to 14.0% and then to 35.5%. It also stops collapsing as the incomes diverge. Over a payor income share running from 61% to 95%, the credit as the Worksheet now computes it falls from 64.5% to 1.3%; under this change it runs from 73.4% to 26.3%.

Two things about the scope of these figures. Every number above holds child care at zero, so I ran the same comparison with it present: at \$300 per week of claimed child care the first change moves the order from \$1,276 to \$1,198 and the second to \$964, and the credit for equal parenting falls from 14.0% to 11.3% and from 35.5% to 28.6%. The direction holds and the size shrinks, because child care enters Line 6c and is allocated on income share regardless of the box, which is the subject of Section 2. And I checked the mirror case, in which the lower earner would be the payor: no change proposed here alters which parent pays, at any income split I tested.

If the Task Force adopts neither, two smaller things would still help. The Commentary could say plainly what the Box 1 adjustment is:

"The adjustment produced by checking Box 1 rather than Box 2 in Line 1b is a function of the parents' relative shares of combined available income. Where one parent's share of combined available income is much larger, the adjustment for approximately equal parenting time will be correspondingly smaller. In providing that both parents' columns carry every child, the Worksheet treats each household as bearing the children's costs in full, and the Worksheet does not separately measure the additional costs a parent incurs in providing a residence for the children for a greater share of the time. Where those costs are material, Section IV.B may apply."

And the Worksheet could display both the Box 1 and the Box 2 amounts. Section II.D.4 asks a judge to decide whether the categorical result is appropriate for a family between one third and one half. How is that judgment to be made without knowing what the categorical result was worth, when on the figures above it may be 1.3% or it may be 77.6%? Showing both changes no amount and adds one computed line.

Suggested Worksheet language:

"7f. If you checked Box 1 or Box 3 in 1b, enter the amount that would result at 7d if you had checked Box 2."

5.1 Under Box 3, splitting the children lowers the order while raising the cost

Section referenced: Guidelines Worksheet Lines 1b (Box 3), 1d–1f, 3f and 6g; Section II.D.

Table B exists to capture economies of scale. Two children do not cost twice one child, so the factor is 1.40 rather than 2.00. Where the children are divided between the parents under Box 3, those economies are gone. Each household incurs the cost of a first child, and the two columns together generate a combined factor of 2.00. The arrangement is more expensive in total.

Line 6g nets the two columns against each other, and the net is computed on the one-child schedule. So the more expensive arrangement produces the smaller transfer.

Arrangement (two children)	Payor's share of the children's care	Order
Box 1 — shared equally, both children	$2 \times 50\% = 1.0 \text{ child-share}$	\$835/wk
Box 3 — one child residing with each parent	$1 \times 100\% = 1.0 \text{ child-share}$	\$581/wk

That is \$13,203 a year on identical care responsibility. The netting also treats the lower earner's column obligation as though it were payable. Parent A's nominal obligation is small, since Parent A earns \$570 a week and holds a 12.32% share, and it is set off in full. Line 5c's low-income protection does not reach Parent A either, because it engages only where the other parent's Line 3a is \$391 or less, and Parent A's is \$537.

This point does not favour payors. It cuts against whichever parent has the lower income.

Suggested language (Commentary to Section II.D, added):

"Where the children are divided between the parents under Box 3, each household incurs the cost of a first child, and the combined Table B factors applied across the two columns will exceed the factor that would apply were the children in one household. The netting at Line 6g does not account for this. Where a split arrangement leaves either household with materially less than it would receive were the same children in a single household, Section IV.B may apply."

This is a correctness point about one provision, not a claim about typical outcomes; I have no figure for how often Box 3 is used. There is a contrary view, and I acknowledge it: in a split each parent directly bears their own child's costs, so less needs to transfer. My point is not that netting is wrong in principle, but that it is computed on a schedule that assumes economies of scale the arrangement has eliminated.

6. Two recommendations already before the Task Force deserve adoption

Sections referenced: Guidelines Worksheet; Findings and Determinations form CJ-D 305.

In its December 2024 submission, the Mass Family Advocacy Coalition recommended, as its Recommendations 4 and 5, a mandatory financial disclosure checklist attached to the Guidelines Worksheet, completed and signed by each party under the penalties of perjury; and relocating the deviation section from the Findings form onto the Worksheet, together with better deviation data.

I support both.

I come to these from a different position than their authors, and I do not adopt their characterisation of the parties who create disclosure problems. That disagreement does not touch the merits, because both are symmetric instruments. A disclosure checklist signed by each party under the penalties of perjury protects a recipient against an understated income and a payor against an overstated expense. Neither party benefits from inaccurate inputs. The child benefits from neither.

On deviation data, the Economic Review reports that among cases with deviations, no reason was recorded in 14%, even though Section IV.A requires four specific written findings and CJ-D 305 supplies a checklist. It reports that 50% of deviations came from negotiated agreements, and that the headline 26% figure is a composite of deviations, imputed income, attributed income and defaults. The rate of deviation on its own is not published. Neither is the rate at which a contested request for deviation succeeds.

Those two numbers bear directly on whether the presumption established by G.L. c. 208 § 28 and 42 U.S.C. § 667(b)(2) operates as a rebuttable presumption in practice. Recommendation 5 would produce them. I suggest it be adopted for that reason, in addition to the reasons its authors gave.

Suggested language. I supply no redline of my own here. The language already before the Task Force is adequate, and adopting it as proposed avoids introducing unvetted terms. I ask that both be adopted as submitted in December 2024, without change:

Recommendation 4. "Add a disclosure checklist to the Guidelines Worksheet for each party to complete and sign under the penalty of perjury."

Recommendation 5. "Collect more deviation data and include a deviations section in the Guidelines Worksheet." In full: "Replace the Deviation section in the Findings form with a new Deviation section in the Guidelines Worksheet. ... [M]ore data is needed to further analyze these changes to presumptive child support calculations."

Both are quoted from the brief as submitted. One addition is mine and not MFAC's: that the data collected under Recommendation 5 be sufficient to report the rate of deviation separately from imputed income, attributed income and default, which the Economic Review's 26% composite figure does not.

7. The Guidelines have been amended between review cycles before

The 2025 Guidelines took effect December 1, 2025, and the next quadrennial review is not due until about 2029. No public comment period is open. These comments are offered as correspondence, not as a filing.

I am sending them now rather than holding them for the next cycle because the Guidelines have twice been amended between quadrennial reviews. In June 2018 the Trial Court reviewed two issues on which it had received questions and revised the Worksheet's age-adjustment factors to eliminate outcomes it called "counterintuitive." That was a change to worksheet mechanics, made outside a review cycle, prompted by questions about how the form behaved. A further Commentary revision took effect in 2023.

Each suggestion above is of the same kind. It is confined to the mechanics of a provision or a worksheet line, and it could be adopted on the same basis. Three change a support amount and say so where they appear; the rest change none. If the Court would rather hold them for the 2029 review, they are offered with that in mind.

Attachments

Everything named below is also published at **checktheworksheet.org**, with the model, its test suites, the data behind every figure, and a worksheet calculator that runs the arithmetic in these comments on any incomes within its sliders' range, \$60,000 to \$300,000 for the higher earner and up to \$120,000 for the lower.

- A. Method: how after-tax positions were computed, the constants used, and what the answer is sensitive to.
- B. The model and its tests. A reproduction of CJ-D 304, line by line, pinned against a real order and against the calculation scripts embedded in the Commonwealth's own form. Every figure quoted above traces to a dated run of it, and earlier runs are kept rather than overwritten.
- C. Validation of the Table A reproduction. The schedule transcribed from CJ-D 304 page 4 was checked against all 1,104 rows of the published Guidelines Chart, with no disagreement greater than one dollar.
- D. The fifty-one-jurisdiction comparison at these same incomes, with the verification status of every row and the method by which each was computed, reconciled and checked.
- E. Figures. Twenty-three exhibits drawing the arithmetic in these comments. Not enclosed; published in full at checktheworksheet.org.
- F. A worked example, line by line: the support order and each parent's after-tax position, computed with named constants and their primary sources, and reproducible with a calculator rather than by running code.

Attachment A: Method, assumptions, and sensitivity

Accompanying: Comments on the Massachusetts Child Support Guidelines and Guidelines Worksheet **Date:** 14 September 2026 **Reproducible source and tests:** Attachment B

This attachment states how I produced every figure in the comments: what I took from primary sources, what I assumed, and how far the conclusions move when an assumption changes. A reader who disagrees should be able to find the exact line where it starts.

1. Sources

All primary material is published by the Commonwealth.

Source	Use
2025 Child Support Guidelines, effective 1 December 2025	Section text and Commentary
Child Support Guidelines Worksheet, CJ-D 304 (12/01/2025)	The line-by-line arithmetic, transcribed
2025 Child Support Guidelines Chart	Independent check of Table A (§ 2)
Report of the Task Force for the 2024–2025 Quadrennial Review, 30 June 2025	Structure, recommendations
Economic Review of the Massachusetts Child Support Guidelines 2024–2025, The Brattle Group	Deviation data, benchmark states, gross vs. net income
Findings and Determinations form CJ-D 305 (12/1/25)	Deviation grounds presented to the Court

Every figure here is drawn from CJ-D 304 itself, which arrived 2 September 2026, not from an earlier inferred version of the Worksheet. One earlier conclusion, that § IV.C does not measure child care, proved wrong and was withdrawn.

2. Table A, and how it was checked

CJ-D 304 page 4 prints Table A as eight tranches of combined available income:

- \$15, up to \$301
- 20% of the excess, to \$391
- 22%, to \$1,000
- \$220 plus 21%, to \$1,600
- \$346 plus 18%, to \$2,400
- \$490 plus 14%, to \$3,500
- \$644 plus 11%, to \$5,000
- \$809 plus 10%, to \$8,654

I transcribed that schedule and tested it against the Guidelines Chart, which publishes the one-child weekly amount at every income level: 1,104 rows from \$0 to \$8,654 a week. The check found no row off by more than \$1, support never falling as income rose, the top row annualizing to the \$450,000 maximum in Section II.C.2, and the Chart's between-rows rule followed throughout.

Table B is quoted, not reconstructed. Commentary 2021 to Section II.L gives 1.4 for two children, 1.68 for three, 1.85 for four and 1.94 for five.

3. The Worksheet chain

The lines of CJ-D 304 the comments rely on, and what each one does:

Line	Operation
3a	Available income = $2a + 2c - 2d - 2e - 2f$, floored at \$0, with no tax adjustment.
3c	Each parent's share of combined available income

Line	Operation
3d	Applicable income, the lesser of 3b and \$8,654
3e to 3g	Table A on 3d, times Table B for the number of children in that column
4a to 4c	Table C age adjustment, keyed per column
5a to 5c	Proportional shares, with the low-income payor adjustment at 5c
6a and 6b	Child care, capped at \$430 a child, allocated on the other parent's 3c
6c	5c + 6b, where child care enters the order.
6d to 6g	Income-disparity adjustment. 6g = Recipient 6e – Payor 6e.
7a to 7d	Recipient-side disparity adjustment. 7d is the presumptive order.
7e	7d ÷ Payor 3a. At 40% or more the substantial-hardship box is checked.

I checked every line above against CJ-D 304, including two real Massachusetts orders reproduced in full. Two things are not modelled: the Commentary's combined child-support-and-child-care test for parties who keep child care off the Worksheet, and the discretionary band above \$450,000.

Rounding. CJ-D 304 rounds every line to the nearest whole dollar or percentage; I carry cents so each step stays traceable. Rounded at every step, the worked example comes to \$1,016 a week rather than \$1,012.73 (Line 3c rounding 87.68% to 88% accounts for nearly all of it) — the same figure the form's own built-in rounding returns directly, in all six scenarios the comments quote, \$2 to \$5 a week off from mine and always against the payor. A reader who works the form by hand should expect the rounded number.

4. The after-tax computation

Support is neither deductible to the payor nor taxable to the recipient. To compare what each household has left to spend, I computed each parent's withholding basis: federal income tax, Social Security and Medicare, and Massachusetts income tax, for a single filer claiming no exemptions.

No refundable credit is counted in any figure the comments ask the Task Force to act on. Earlier drafts counted the federal and Massachusetts credits for whichever parent the convention assigned them to; that survives only as a separate, labelled view, since those credits and head-of-household status turn on which parent claims which child, a fact CJ-D 304 does not collect.

The withholding basis needs nothing beyond gross income and a published rate table — the same method the Task Force's own consultant uses to convert the guideline chart to net terms.

Federal and Massachusetts constants (tax year 2026), checked against IRS Rev. Proc. 2025-32 and Commonwealth publications: standard deduction \$16,100 single; Social Security wage base \$184,500; Massachusetts income tax rate 5%; personal exemption \$4,400 single. A second, independent build (Attachment D, § 2) matched the two effective tax rates to within a tenth of a point.

Correction: an earlier draft named a "Massachusetts child care expense deduction" as real and conservative against the payor. It does not exist: St. 2023, c. 50, § 21 struck the former M.G.L. c. 62 § 6(x)/(y) and replaced it with the Child and Family Tax Credit, already counted above.

Disclosed inference: both filers are treated as taking the standard deduction, with no itemized path computed for either. This is plausibly wrong for the payor: a \$201,000 earner with a mortgage can likely clear the \$16,100 deduction on interest and state tax alone, raising his real net income and cutting against this project's own argument that he is the more heavily burdened party. Neither party's figures are available, so only the direction is disclosed, not the size.

5. The figures used in the comments, and their sensitivity

Every figure below is computed from a real Worksheet calculation, as the comments say in § 1 and disclose there: payor \$201,000 a year with a \$43 weekly health premium, recipient \$570 a week with \$33, three children, two under 13 and one 13 to 17, Box 1.

Figure	Value	Basis
Presumptive order, no child care	\$1,013/wk (\$52,662/yr)	§ 3
Presumptive order, \$300/wk child care claimed	\$1,276/wk (\$66,340/yr)	§ 3
Line 7e at \$300/wk child care	33.4%	Worksheet Line 7e
The same order as a share of payor after-tax income	47.4%	§ 4
Child care at which Line 7e first reaches 40%	\$589/wk (about \$196 a child)	Solved by bisection
Payor's after-tax burden at that point	56.9%	The 17-point lag
Payor effective tax rate	+30.4%	§ 4 constants
Recipient effective tax rate	+16.6%	§ 4 constants, withholding basis, no credits
Payor's Line 3c share (his share of any claimed child care)	87.68%	Worksheet Line 6b
Reduction for equal shared parenting at that income ratio	6.9% (\$3,909/yr)	Box 1 against Box 2
The same reduction at a 56.3% payor income share	77.6%	§ 5's sweep in the comments
Box 1 against Box 3, two children, identical care responsibility	\$835/wk against \$581/wk	§ 5.1 of the comments
The equal-parenting credit, expressed as the payor's own Line 6e	\$75.17/wk	§ 5
Cross-credit duplication factor implied by Box 1	2.00	§ 5 (Indiana's commission derives 1.5)
Equal parenting priced as a share of overnights, against 1.5	33.3%	§ 5 (46.9% against 2.0)
Order under the Line 6e redline / the Line 5b-1 redline	\$935.06 / \$701.30 per week	§ 5 (from \$1,012.73)
Each parent separately pays \$300/wk of child care	Payor bears \$29,008 of \$31,200, 93%	Stated in the comments: combined spending doubles under equal parenting
Child care allocated on each parent's after-tax share of resources after the order (§ 2 primary redline, Lines 6b-1a and 6b-1)	payor share 87.7% → 53.0%, order \$1,276 → \$1,172/wk (\$5,415/yr less)	Definition, not assumption: net of federal and state tax and FICA, single filer, no exemptions — an inference, since the Worksheet collects neither parent's filing status nor who claims which child. Counting credits instead moves the payor's share to 49.7%, not asked for but recorded for the record.
Child care allocated on gross shares adjusted by the base order (§ 2 fallback, Line 6b-2)	payor share 87.7% → 64.5%, order \$1,276 → \$1,206/wk (\$3,624/yr less)	Definition, not assumption. Needs no input the Worksheet does not already compute.

6. Limits I want stated plainly

Per person rather than per household, the payor keeps more than any individual member of the recipient household in every scenario the comments quote: \$87,172 for one against \$19,349 each for four in the no-child-care case. Households are compared because Sections IV.C and IV.B.13 are household-level and payor-level provisions, but the per-person figure belongs in view.

The \$430-a-child benchmark is a ceiling, set by the Task Force from Massachusetts infant-care cost data, not a typical claim. At three children it is \$1,290 a week, so the comments lead with the \$589 a week at which Line 7e first reaches 40%, not with the ceiling. Only once \$300 a week of child care is claimed does the household comparison reverse, \$73,493 against \$75,474, while Line 7e rises from 26.5% to 33.4% and still falls short of 40%.

One income pair is not a distribution; I do not know how often claimed child care approaches the benchmark, which is one reason the comments support better data collection.

The assumption that combined child care doubles under equal parenting is mine; the 93% figure scales down proportionately if spending is lower, and the Guidelines collect no data on it.

7. Reproduction

Attachment B contains the source, the parsed Chart data, and the checks described above. The Table A check can be run independently of every other figure quoted here. If a line of the transcription is wrong, I would like to be told, and I will revise.

Attachment D — Fifty-one-jurisdiction comparison at one fact pattern

Accompanying: Comments on the Massachusetts Child Support Guidelines and Guidelines Worksheet **Date:** 14 September 2026 **Per-row data:** final-rows-2026-09-03.json (this folder)

This attachment shows how I produced the cross-state figures in section 5 of the comments, which rows I used, which I excluded and why, and the full table for all fifty states and the District of Columbia. Any single row can be checked against the source that row names.

1. The fact pattern

Parent B earns \$201,000 a year gross (\$16,750.00 a month, \$3,865.38 a week) and pays a \$43 weekly health premium. Parent A earns \$570 a week gross (\$29,640 a year, \$2,470.00 a month) and pays a \$33 weekly health premium. Combined income is \$230,640 a year, \$19,220.00 a month, \$4,435.38 a week. Three children, two under 13 and one 13 to 17. Wage income only, no other support orders.

S1 is equal shared parenting, 182 and 183 overnights. S2 is Parent A primary with Parent B at 122 overnights a year (33.4%), applying each state's own rule to that count rather than assuming S2 is the no-credit case. S3 is S2 plus \$300 a week (\$15,600 a year) of work-related child care for the two younger children. Weekly figures convert to monthly at $52 \div 12$ before rounding, and monthly figures are reported to the cent.

2. Method

Every jurisdiction went through the same four stages, with no special handling for Massachusetts. Each stage was carried out by a separate AI language-model analyst working from the primary sources named in the row, under written instructions, and without access to the other analysts' output. I designed the stages, set the fact pattern, ran the control described below, and checked the figures the comments quote against the per-row data file. The table names the source for every row so that any reader can repeat the check without relying on either the analysts or me.

1. Profile. One analysis read the jurisdiction's own statute, court rule, schedule and worksheet and recorded the model (income shares, percentage of obligor income, Melson, or other), the income basis, the schedule unit, whether the schedule reaches this income, the shared-parenting rule and the treatment of work-related child care, citing a source for each.
2. Two blind computations. Two further analyses each computed S1, S2 and S3 from that profile without seeing the other's work.
3. Reconciliation. Where the two disagreed, a third analysis adjudicated from the sources and recorded why they had disagreed.
4. Attack. A final analysis tried to break the profile by finding a misread rule, a schedule read in the wrong unit, a cap not applied or a credit not credited. Where it found a defect that changes the result and could supply a corrected figure, I use the corrected figure and mark the row CORRECTED. Where it found such a defect and could not supply a figure, I mark the row DISPUTED.

Massachusetts ran blind through the same pipeline as a control, and it reproduced the Worksheet model in Attachment B to within a dollar at every scenario. The blind run returned \$4,388.48, \$4,714.22 and \$5,854.09 a month against the model's \$4,389, \$4,714 and \$5,854. A separate blind re-implementation of the tax position, working from IRS Rev. Proc. 2025-32 and the Massachusetts statute, returned effective rates of +30.43% for the payor and -38.86% for the recipient. Attachment A reports +30.4% and -38.9%. On 5 September 2026 Texas and Georgia, recomputed blind from their own documents, reproduced their rows exactly, and Massachusetts, run blind through the form's own rounding, returned the rounded figures Attachment A reports.

3. Which rows the comments use

The comments rank only rows that survived every stage. That means the two blind computations agreed or were adjudicated, and the attack found nothing that changes the result. Thirty-six rows carry that flag. I set six of them aside before ranking.

- Kansas and New York exceed their own schedule's income cap at this fact pattern. New York's cap is \$193,000 a year against \$230,640 combined. Above the cap each guideline commits the amount to the judge's discretion, so no presumptive figure exists to report.
- Georgia and Nebraska are internally inconsistent. Georgia's S2 is below its S1, and Nebraska's S2 could not be computed.
- Alabama and California each carry a defect the attack marked as changing the result, with no corrected figure supplied. The survived flag on those two rows contradicts the attack's own text, so the DISPUTED classification in the table governs.

That left thirty rows after the first pass. On 4 September 2026 I ran two further passes over the twenty-one that had not survived. In the first, one analyst repaired each computation from the defects the adversary had named, a second computed the state from scratch without seeing the repair, a third adjudicated any disagreement, and a fresh adversary attacked the settled figure. Five survived that attack, and two more that the attack corrected were confirmed by a further independent recomputation. In the second pass I downloaded each remaining state's own guidelines, schedule, worksheet and conversion table from official sites, and ran the same four stages against those documents rather than the web. Ten settled there, and on 5 September a third reading of the single disputed line settled Colorado, Hawaii and South Dakota, and a reading of Iowa's medical support rule settled Iowa; I hold Georgia out. Every analysis in every pass was an AI language model working under written instructions; each document read is named in the data files in this folder, and a manifest lists every document downloaded.

The comparison therefore uses **fifty** rows. Kansas, New York and Oklahoma are reported as the mandatory amounts at their caps of \$18,000 a month, \$193,000 a year and \$15,000 a month, and labelled cap-bound wherever they appear. Oklahoma also depends on one fact I have fixed by decision: the three children are insured, so its cash medical support line is not invoked; the source of that coverage is not part of the fact pattern and neither parent's stated premium is treated as covering them, which is how the Massachusetts worksheet treats those premiums too. Section 6 lists the twenty additions and the one row held out, with the reason for each. Georgia is held out although five analyses agree on its figure: the state's newly enacted parenting-time formula, read literally, gives a lower order at one-third time than at equal time. The worked example in the Commission's calculator user guide (Figures 79 and 80, \$112.73 at 150 noncustodial days on a \$390 obligation) reproduces the literal formula to the cent, so the state's calculator does produce this result. I still would rather not rank a result that the statute's own explanatory text seems not to intend.

Among the fifty Massachusetts produces the highest S1, \$4,388 a month. New York's cap-bound \$4,068 is next, and New Hampshire at \$3,839 is the next highest state whose schedule reaches this income; Massachusetts exceeds it by about 14%. On S2 Hawaii is higher, at \$5,821 under its Melson formula; Massachusetts's \$4,714 is second, about 5% above Wisconsin at \$4,492. Georgia, held out, falls well below Massachusetts on both scenarios.

A stricter tier requires, in addition, that both the profile and the calculation were self-rated high confidence. Five rows meet it: Delaware, Massachusetts, New Jersey, Vermont and Virginia. Massachusetts is first on S1 (46% above New Jersey) and on S2 (18% above Delaware) among those five as well. The gap between the two tiers is almost entirely analysts rating an interpolated schedule "medium" rather than any identified defect. That is why the comments use the fifty-row tier and say so.

Of the fifty-one jurisdictions, twenty-eight apply some formula-based reduction in support at 122 overnights a year and twenty-three apply none (credit-at-122-2026-09-05.json, produced by tools/credit_at_122_tally.py, which records the one reclassification, South Dakota, and its basis). I count Massachusetts among the twenty-three because its Worksheet takes a categorical input, and approximately one third of parenting time is Box 2, the base case, not a credit applied to a higher default. I draw no conclusion about the dollar effect of that difference. Among the five strict-tier rows the proportional increase from S1 to S2 is New Jersey 0%, Massachusetts 7.4%, Virginia 42.7%, Vermont 53.8% and Delaware 74.9%. Four of the five give a credit at 122 overnights and Massachusetts does not. The presence of a credit does not order them, and the Massachusetts-against-Delaware pairing on its own would have suggested the opposite of intuition.

4. Qualifications

This is one fact pattern at one income level. I have applied no cost-of-living adjustment, and the Task Force's own consultant has justified higher Massachusetts amounts on that ground. Every other jurisdiction's profile was assembled once in this exercise, while Massachusetts's has been checked against the form itself, so the pipeline's behaviour on Massachusetts is a reasonable proxy for its behaviour elsewhere and not a guarantee. And these are presumptive guideline amounts. They say nothing about what any court ordered.

Two conventions differ between the passes, each worth a few percent. The first pass told analysts the \$43 and \$33 premiums covered the children. The second, following the Massachusetts worksheet, treated them as each parent's own cost and the children as insured from an unstated source. Recomputing Delaware blind both ways on 5 September 2026 moved its figures by 1.3% to 2.8%, and under the first-pass convention it reproduced the row used here to the cent. Where a state works in net income and publishes no conversion table, analysts were given approximate effective tax rates with the lower earner's refundable credits left out. A blind recomputation of Michigan and Florida that netted those credits lowered their orders by 10% and 14%. Under the original convention they returned to within 1% and 3% of the rows used here. Netting a lower earner's refundable credits reduces a net-income state's order, so that convention runs against the comparison's conclusion wherever it applies. The 14% margin over New Hampshire on S1 clears the largest effect measured. The 5% margin over Wisconsin on S2 is the closest in the ranking, and although it exceeds the 2.8% measured on Delaware, one measurement on one state is not a noise band. Read it with more caution than the rest. The files are in spot-check-2026-09-05/.

5. The table (all 51), first pass

Dollar figures are monthly. Where the attack supplied a corrected value I use it. A * marks a cell where the attack's corrected array left that scenario without a usable figure. DISPUTED and DISCRETIONARY rows show the as-computed blind figures for the record and are not ranked or cited. "Status" is the classification described in section 2, as it stood after the first pass. The fifty-row tier used in the comments is defined in section 3, and section 6 records what the second pass changed. The Reaches column records the first-pass profile's reading; Oklahoma's read Y although its cap binds at this income, which section 6 records as cap-bound.

State	Status	Model	Income basis	Schedule unit	Reaches income	S1 (mo)	S2 (mo)	S3 (mo)	Cred at 12 O/N
Alabama	DISPUTED, see § 6	income shares	gross	per family	Y	1,846.00	2,836.00	3,967.00	N
Alaska	LOW-CONFIDENCE	percentage of obligor income	net	percentage	N	2,367.95	3,462.96	3,624.80	Y
Arizona	CORRECTED, see § 6	income shares	gross	per family	Y	1,339.00	2,320.00	3,453.00	Y

State	Status	Model	Income basis	Schedule unit	Reaches income	S1 (mo)	S2 (mo)	S3 (mo)	Cred at 12 O/N
Arkansas	LOW-CONFIDENCE	income shares	gross	per family	Y	2,118.68	2,349.64	3,482.57	N
California	DISPUTED, see § 6	other	net	other	Y	3,009.80	3,935.27	4,964.66	Y
Colorado	CORRECTED, see § 6	income shares	adjusted gross	per family	Y	—*	—*	3,406.99	Y
Connecticut	LOW-CONFIDENCE	income shares	net	per family	Y	3,138.20	3,138.20	3,944.20	N
Delaware	VERIFIED	Melson	net	other	Y	2,281.35	3,990.73	4,989.26	Y
District of Columbia	LOW-CONFIDENCE	income shares	adjusted gross	per family	Y	2,253.73	3,467.96	4,600.90	N
Florida	LOW-CONFIDENCE	income shares	net	per family	Y	1,735.21	2,512.99	3,612.62	Y
Georgia	LOW-CONFIDENCE, see § 6	income shares	gross	per family	Y	1,783.68	610.75	1,743.68	Y
Hawaii	CORRECTED, see § 6	Melson	net	other	Y	2,763.00	5,799.00	6,681.00	N
Idaho	LOW-CONFIDENCE	income shares	gross	per family	Y	1,794.22	2,549.85	3,682.79	Y
Illinois	CORRECTED, see § 6	income shares	net	per family	Y	—*	—*	4,120.69	N
Indiana	LOW-CONFIDENCE	income shares	gross	per family	Y	2,283.25	2,548.03	3,680.96	Y
Iowa	CORRECTED, see § 6	income shares	net	per family	Y	1,943.88	3,111.16	4,152.38	N
Kansas	DISCRETIONARY , see § 6	income shares	gross	per child	N	2,494.99 [†]	4,101.95 [†]	5,234.88 [†]	N
Kentucky	LOW-CONFIDENCE	income shares	gross	per family	Y	1,087.80	1,871.67	3,004.60	Y
Louisiana	LOW-CONFIDENCE	income shares	adjusted gross	per family	Y	2,227.23	3,269.06	4,284.34	N
Maine	LOW-CONFIDENCE	income shares	gross	per child	Y	2,899.02	2,899.02	4,031.96	N
Maryland	LOW-CONFIDENCE	income shares	gross	per family	Y	2,309.54	3,295.11	4,428.05	Y
Massachusetts	VERIFIED	income shares	gross	other	Y	4,388.48	4,714.22	5,854.09	N
Michigan	LOW-CONFIDENCE	income shares	net	per family	Y	1,445.25	2,808.44	3,908.11	Y
Minnesota	LOW-CONFIDENCE	income shares	gross	per family	Y	1,174.71	2,271.30	3,403.47	Y
Mississippi	LOW-CONFIDENCE	percentage of obligor income	adjusted gross (obligor only)	percentage	Y	2,097.44	2,564.76	2,564.76	N
Missouri	LOW-CONFIDENCE	income shares	gross	per family	Y	3,139.00	3,139.00	4,153.00	Y
Montana	CORRECTED, see § 6	Melson	net	other	Y	1,730.87	3,270.12	4,112.54	Y
Nebraska	LOW-CONFIDENCE, see § 6	income shares	net	per family	Y	1,572.00	—‡	—‡	N

State	Status	Model	Income basis	Schedule unit	Reaches income	S1 (mo)	S2 (mo)	S3 (mo)	Cred at 12 O/N
Nevada	LOW-CONFIDENCE	percentage of obligor income	gross	percentage	Y	1,842.80	2,485.00	2,485.00	N
New Hampshire	DISPUTED, see § 6	hybrid	net	per family	Y	—	3,818.00	4,100.00	N
New Jersey	VERIFIED	income shares	net	per family	Y	3,002.31	3,002.31	3,406.43	Y
New Mexico	LOW-CONFIDENCE	income shares	gross	per family	Y	1,823.64	2,795.32	3,928.25	N
New York	DISCRETIONARY , see § 6	other	gross	percentage	N	—	—	—	N
North Carolina	CORRECTED, see § 6	income shares	gross	per family	Y	1,976.88	—*	—*	N
North Dakota	LOW-CONFIDENCE	percentage of obligor income	net	other	Y	2,939.00	3,219.00	3,219.00	Y
Ohio	CORRECTED, see § 6	income shares	gross	per family	Y	2,441.85	2,441.85	3,581.69	Y
Oklahoma	CORRECTED, see § 6	income shares	adjusted gross	per family	Y	1,385.10	2,109.46	3,242.39	Y
Oregon	LOW-CONFIDENCE	income shares	gross	per family	Y	1,072.00	1,772.00	2,905.00	Y
Pennsylvania	LOW-CONFIDENCE	income shares	net	per family	Y	2,378.42	3,086.76	4,071.81	N
Rhode Island	LOW-CONFIDENCE	income shares	gross (functionally)	per family	Y	2,684.45	3,123.22	4,068.43	N
South Carolina	LOW-CONFIDENCE	income shares	gross	per family	Y	1,832.22	2,669.21	3,684.50	Y
South Dakota	CORRECTED, see § 6	income shares	net	per family	Y	1,876.20	2,472.50	2,472.50	Y
Tennessee	LOW-CONFIDENCE	income shares	adjusted gross	per family	Y	1,833.00	2,031.00	3,164.00	Y
Texas	LOW-CONFIDENCE	percentage of obligor income	net (obligor only)	percentage	N	3,510.00	3,510.00	3,510.00	N
Utah	CORRECTED, see § 6	income shares	gross	per family	Y	1,036.65	2,311.00	2,961.00	Y
Vermont	VERIFIED	income shares	other (available income)	per family	Y	1,686.42	2,594.42	3,644.63	Y
Virginia	VERIFIED	income shares	gross	per family	Y	1,872.18	2,672.09	3,805.02	Y
Washington	LOW-CONFIDENCE	income shares	net	per child	Y	2,819.56	2,819.56	3,919.20	N
West Virginia	CORRECTED, see § 6	income shares	gross	per family	Y	1,818.56	—*	—*	N
Wisconsin	CORRECTED, see § 6	percentage of obligor income	gross	percentage	Y	—*	3,652.87	4,087.39	Y
Wyoming	DISPUTED, see § 6	income shares	net	per family	Y	1,917.95	2,803.78	2,803.78	Y

6. The reworking passes, 4 and 5 September 2026

Twenty rows were added.

State	S1 (mo)	S2 (mo)	S3 (mo)	How it was settled
Alabama	1,746.00	2,736.00	3,698.00	second rework from local documents, survived the attack
Arizona	1,309.36	2,290.06	3,422.99	second rework from local documents, survived the attack
California	2,424.32	3,436.04	4,355.33	first rework, survived the attack (figures as corrected by the attack)
Colorado	2,652.32	3,090.30	4,040.22	second rework; one disputed line settled by a third reading of the document
Hawaii	2,774.00	5,821.00	6,713.00	second rework; one disputed line settled by a third reading of the document
Illinois	1,881.45	3,037.90	4,103.12	second rework from local documents, survived the attack
Iowa	2,630.25	3,744.73	4,764.86	second rework; cash medical support ordered by default under Rule 9.12(3)(a), three readings agree
Kansas	2,296.63	3,838.03	4,696.45	second rework from local documents, survived the attack (cap-bound)
Montana	1,461.00	3,073.50	3,790.83	first rework, survived the attack
Nebraska	1,475.23	2,402.03	3,499.66	first rework, survived the attack
New Hampshire	3,838.66	3,838.66	4,117.14	first rework, corrected by the attack then confirmed independently
New York	4,067.61	4,067.61	5,201.33	first rework, survived the attack (cap-bound)
North Carolina	1,883.12	2,934.30	4,067.23	first rework, corrected by the attack then confirmed independently
Ohio	2,564.15	2,564.15	3,647.26	second rework from local documents, survived the attack
Oklahoma	1,284.42	2,008.78	3,141.71	second rework from local documents, survived the attack (cap-bound; children insured)
South Dakota	1,788.96	2,623.12	3,623.24	second rework; one disputed line settled by a third reading of the document
Utah	1,058.31	2,332.66	2,982.66	second rework from local documents, survived the attack
West Virginia	1,724.21	2,518.77	3,368.48	second rework from local documents, survived the attack
Wisconsin	3,117.35	4,491.71	4,926.24	first rework, survived the attack
Wyoming	1,900.85	2,801.97	2,801.97	second rework from local documents, survived the attack

One row is held out. The figure shown is the latest computed and is not to be cited.

State	Status	Latest S1 / S2 / S3	Why
Georgia	held out	1671.47 / 510.07 / 1643.01	five analyses agree the literal enacted formula gives S2 below S1 and the Commission's calculator guide reproduces it to the cent; not ranked

Per-row detail, including every document read and every defect found, is in the JSON files in this folder: repaired-rows-2026-09-04.json, attack-on-repaired-2026-09-04.json, blind-confirm-2026-09-04.json, rerun-from-docs-2026-09-04.json and settle-five-2026-09-05.json; the tier itself is tier-50-2026-09-05.json. MANIFEST.md lists every downloaded document for all fifty-one jurisdictions with its title, edition and source URL; the documents themselves (about 330 MB) are available on request.